

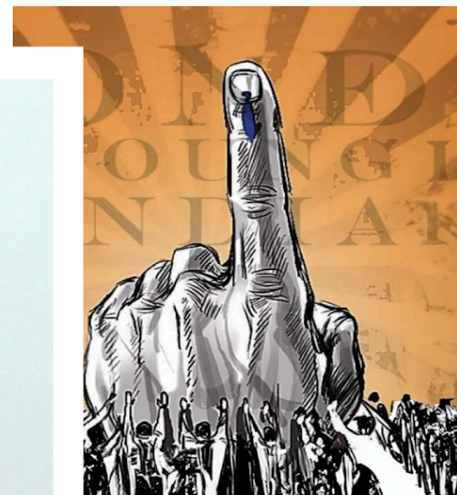
General Knowledge

Indian Polity

STUDY NOTES

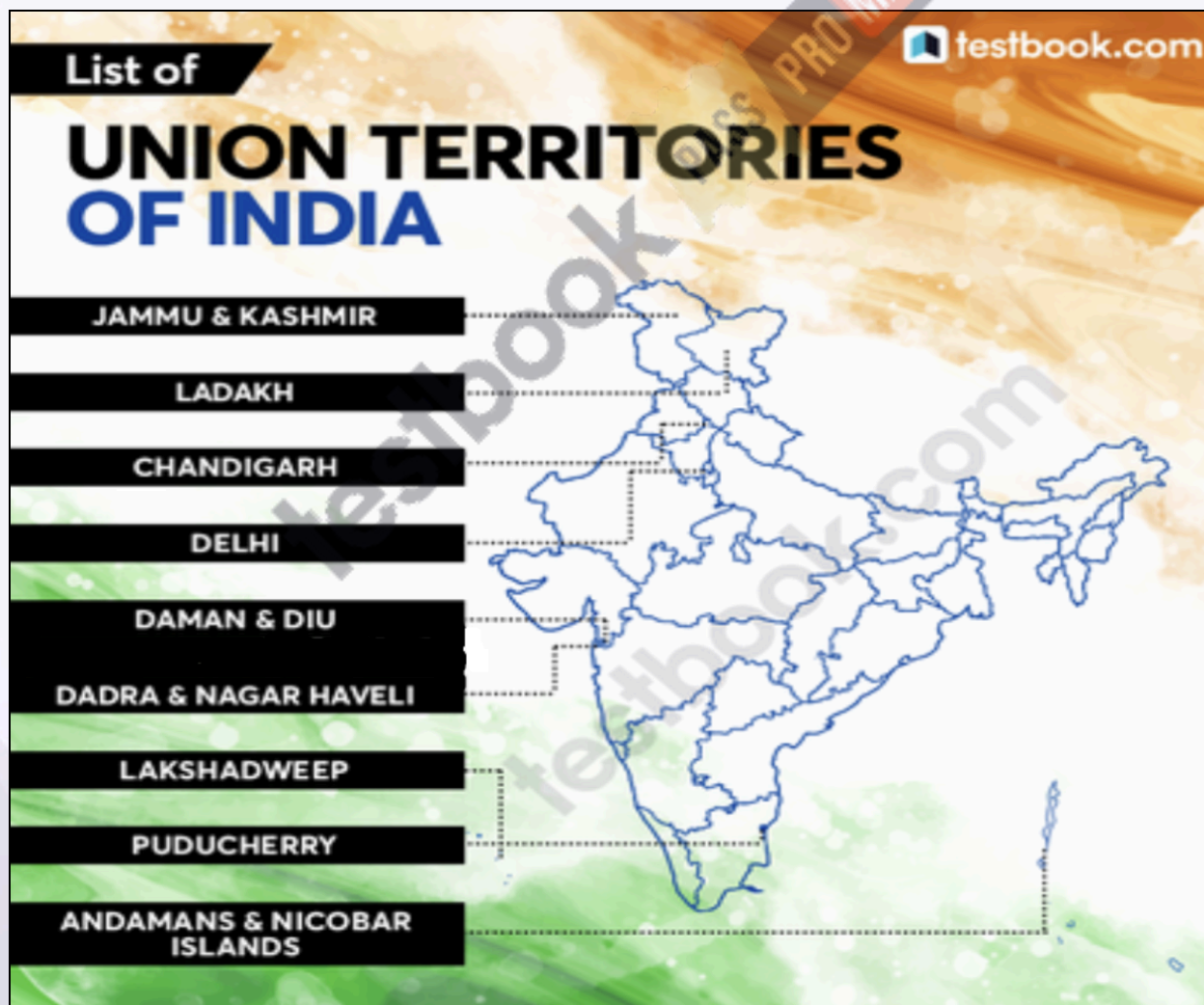
Union Territories of India

PREAMBLE
PEOPLE OF INDIA, in



UNION TERRITORIES OF INDIA

- Union territories are the administrative units that are governed in part or wholly by the Union Government of India.
- They do not have the same level of autonomy as states.
- They are also known as “**centrally administered territories.**”
- **Part VIII** of the Indian Constitution(**Article 239- Article 241**) deals with the Union territories.
- As per **Article 1** of the constitution, the territory of India shall comprise:
 - The territories of the States
 - The Union Territories
 - Such other territories may be acquired.



HISTORICAL BACKGROUND

1874

During BRITISH RULE certain areas were classified as "SCHEDULE DISTRICTS". Later came to be known as "CHIEF COMMISSIONERS PROVINCES".

AFTER INDEPENDENCE

Placed in the categories of part C and D states

1956

- The States Reorganisation Act of 1956 merged all Part C and Part D states into a new category called "Union territory".
- Six Union territories created were: Andaman and Nicobar Islands, Lakshadweep, Delhi, Manipur, Tripura, and Himachal Pradesh.
- Later, Himachal Pradesh became a state, followed by Manipur and Tripura.

1961

Dadra and Nagar Haveli, which were under Portuguese rule, were merged into India and were made a Union territory.

1963

Pondicherry/Puducherry became a Union territory after its transfer from French possession and was granted a state legislature by the Government of Union Territories Act 1963.

1966

Chandigarh was made the shared capital of Haryana and Punjab and became a Union territory.

1987

Daman and Diu earlier used to be part of Goa and became a Union territory.

2019

The Jammu and Kashmir Reorganization Act split the state into two Union territories: Jammu and Kashmir and Ladakh.

2020

The two Union territories of Dadra and Nagar Haveli and Daman and Diu were merged into a single territory.

Present UTs of India

As of now, India has eight Union Territories, each with its own administrative framework and significance.

Union Territory	Capital	Key Features
Andaman and Nicobar Islands	Port Blair	Known for its beautiful beaches and tribal populations; administered by a Lieutenant Governor.
Chandigarh	Chandigarh	Union Territory and capital of both Punjab and Haryana; a planned city known for its architecture.
Dadra and Nagar Haveli and Daman and Diu	Daman	Merged in 2020, it has a coastal economy and is governed by a Lieutenant Governor.
Lakshadweep	Kavaratti	Comprising islands, known for its coral reefs and tourism; administered by a Lieutenant Governor.
Delhi (National Capital Territory)	New Delhi	Has its own legislative assembly; a significant political and economic hub; administered by a Chief Minister.
Puducherry	Puducherry	Retains legislative assembly; known for its French colonial heritage and unique governance.
Jammu and Kashmir	Srinagar	Formerly a state; restructured in 2019; significant cultural and geopolitical importance.
Ladakh	Leh	Created in 2019; known for its Buddhist culture and stunning landscapes; administered by a Lieutenant Governor.

REASONS FOR CREATION OF UTs

Political and administrative consideration

(Delhi and Chandigarh)

Cultural distinctiveness

(Puducherry and Dadra and Nagar Haveli and Daman and Diu)

Strategic Importance

(Andaman and Nicobar Islands, Lakshadweep, J&K and Ladakh)

Special treatment for tribals

(Mizoram, Manipur etc. which later became states)

Administration of Union Territories (UTs) in India

Direct Control by the Central Government

- **Administrator or Lieutenant Governor:** Most UTs are directly administered by the **President of India** through an **Administrator** or **Lieutenant Governor**, who is appointed by the central government. This individual acts as the executive head of the UT.

- **Central Policies:** The Administrator implements policies and schemes of the central government, ensuring uniformity across the territory.

Judicial Framework

- **High Court Jurisdiction:** The judiciary in UTs is linked to the high courts of neighboring states. For example:
 - **Delhi** has its own **High Court**.
 - **Chandigarh** is governed by the **Punjab and Haryana High Court**.
 - **Lakshadweep** falls under the **Kerala High Court** jurisdiction.
 - **Andaman and Nicobar Islands** are under the **Kolkata High Court**.
 - **Dadra and Nagar Haveli and Daman and Diu** are governed by the **Mumbai High Court**.

Special Provisions for Delhi (National Capital Territory)

Delhi, as the **National Capital Territory (NCT)** of India, enjoys a unique status under the Indian Constitution. Some special provisions set it apart from other Union Territories:

- **Article 239AA: Creation of Legislative Assembly**
 - The **69th Constitutional Amendment Act, 1991** inserted **Article 239AA**, which granted Delhi a **Legislative Assembly** with the power to legislate on **state and concurrent list subjects** except for **public order, police, and land**.
 - This article creates a distinction between Delhi and other Union Territories, providing it with a more significant level of autonomy.
- **Lieutenant Governor (LG) as the Administrator U/A Article 239AA**
 - The **Lieutenant Governor** of Delhi acts as the administrative head, but decisions regarding matters outside the purview of the Assembly (public order, police, and land) are directly controlled by the **Central Government**.
 - In case of a conflict between the **Council of Ministers** and the **LG**, the LG may refer the issue to the **President of India**, whose decision is final.
- **Article 239AB: President's Rule**
 - Article 239AB empowers the **President** to suspend the **Legislative Assembly** of Delhi if it is not functioning in accordance with the provisions of the Constitution.
 - The President can assume full control over Delhi's governance and issue regulations for its administration.

- **Power Distribution**

- While Delhi's Assembly has legislative power over subjects in the **State and Concurrent Lists** (except those excluded), any law passed by the Delhi Assembly can be overruled by **Parliament** if it is in conflict with central laws.
- Matters of **public order, police, and land** remain under the exclusive jurisdiction of the **Central Government**.

- **Control over Services**

- The contentious issue of control over the **Delhi services**, including the power to appoint and transfer officers, has seen several legal battles.
- In May 2023, the **Supreme Court** ruled that the elected government of Delhi has legislative and executive control over services, excluding matters related to public order, police, and land.
- However, a subsequent **ordinance** by the Central Government established the **National Capital Civil Services Authority (NCCSA)** to manage the transfer and posting of officers in Delhi, shifting some powers back to the LG.

- **Representation in Parliament**

- Delhi has representation in both houses of Parliament, with **7 Lok Sabha seats** and **3 Rajya Sabha seats**, giving it significant political weight.

- **Special Institutions**

- The **Delhi Development Authority (DDA)** and the **New Delhi Municipal Council (NDMC)**, both managed by the Central Government, play crucial roles in managing urban development and municipal services in specific areas of Delhi.

Classification of Union Territories

Classification	With Legislature	Without Legislature
Union Territories	Delhi NCR, Puducherry	Other Union Territories
Executive Authority	Governed by a Lieutenant Governor, acting on the aid and advice of the Council of Ministers.	• Administered by the President, acting through an Administrator. • Advisory councils like the Administrator's Advisory Councils

		and Home Minister's Advisory Committees (HMACs) are established for guidance.
Legislature	Legislative Assembly operates under the State list (excluding police, public order, and land) and the Concurrent list of the 7th Schedule.	• They are governed by Parliament over the three lists of the 7th Schedule (in case of conflict, Parliament's law prevails). • The President can make governance regulations during the suspension of the assembly.
Judiciary	Delhi High Court, Madras High Court	• Andaman - Kolkata High Court, • Chandigarh - Punjab and Haryana High Court, • Dadra and Nagar, Daman and Diu - Mumbai High Court, • Lakshadweep - Kerala High Court • J&K and Ladakh High Court - Jammu and Srinagar

Difference between States and Union Territories

Feature	States	Union Territories
Form of Government	Constituent divisions with separate governments.	Administered directly by the Central Government of India.
Federal Relationship	Enjoy a federal relationship with the central government, with distributed legislative and executive powers.	Part of a unitary structure under the central government, where all legislative and executive powers rest with the Union.

Legislative Assembly	Has its own Legislative Assembly.	Does not have its own Legislative Assembly, except for Delhi and Puducherry, and Jammu and Kashmir.
Role of Governor/Administrator	The Governor acts in aid and advice of the Council of Ministers.	The Administrator acts on behalf of the President of India.
Representation in Parliament	Represented in both Houses of Parliament (Lok Sabha and Rajya Sabha).	Represented in Lok Sabha only, except for Delhi, Puducherry, and Jammu and Kashmir, which also have representation in Rajya Sabha.